SCHEME OF AMALGAMATION

OF

AVINYA BATTERIES LIMITED

CIN: U31109DL2015PLC274891

(TRANSFEROR COMPANY)

WITH

PPAP AUTOMOTIVE LIMITED

CIN: L74899DL1995PLC073281

(TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS

(Under the provisions Of Section 230-232 and other applicable provisions of the Companies Act 2013)

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For PPAP Automotive Limited
Company Secretary

PREAMBLE

This Scheme of Amalgamation (the "**Scheme**") is presented under the provisions of Section 230-232 of the Companies Act, 2013 read with Section 2(1B) of the Income-tax Act, 1961/Section 2(6) of the Income-tax Act, 2025 ('**IT Act**') for the amalgamation of **AVINYA BATTERIES LIMITED** (hereinafter referred to as "**ABL**" or "**Transferor Company**") with **PPAP AUTOMOTIVE LIMITED** (hereinafter referred to as "**PPAP**" or "**Transferee Company**").

Background

(1) Transferee Company is a public limited company whose shares are listed on BSE and NSE and which is one of the largest manufacturers of sealing systems, interior, and exterior injection moulded products for the automotive industries.

(2) Transferor Company is an unlisted public limited company which is inter alia engaged in manufacturing of Li-Ion based Battery pack solution for the 2 wheeler and 3 wheeler industry, energy storage systems, and industrial power solutions. The beneficial interest in its entire share capital is held by the Transferee Company.

Rationale and objective of the Scheme

The Transferor Company is a wholly owned subsidiary of the Transferee Company and the management of the companies intend to consolidate the operations of Transferor Company and Transferee Company which, *inter alia*, will have the following benefits:

(1) Synergies arising out of operational and financial consolidation of respective businesses;

(2) Focused approach towards customers as collective services shall be rendered by a single consolidated entity;

(3) Reduction of operating / administrative costs and improvement in profitability;

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(4) Management of businesses more efficiently and effectively and for better co-ordination of business activities;

(5) Improved organizational capability and leadership, arising from pooling of financial and human capital in a single consolidated entity for effective treasury function and centralized management of funds to supplement future growth opportunities.

In consideration of the above mentioned business rationale and related benefits, reciprocal promises and this amalgamation, this Scheme between Transferor Company and Transferee Company and their respective shareholders is being proposed in accordance with the terms set out hereunder.

Parts of the Scheme

This Scheme is presented under Sections 230-234 of the Companies Act, 2013 (including but not limited to Section 233 of the Companies Act, 2013) which shall include any statutory modifications, re-enactment or amendments thereof for the time being in force, for amalgamation of ABL with PPAP with effect from 01 April 2026. The Scheme is divided into following parts:

Part I:	Introduction and definitions
Part II:	Amalgamation of Transferor Company with Transferee Company
Part III:	Share entitlement ratio and accounting treatment
Part IV:	General clauses, terms and conditions

This Scheme also provides for various other matters consequential or otherwise integrally connected herewith.

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PART I - INTRODUCTION AND DEFINITIONS

1 Definitions and References

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meaning:

1.1 "**ABL**" or "**Transferor Company**" means Avinya Batteries Limited, an unlisted public limited company, a company incorporated under the Companies Act, 2013 on Jan 01, 2015 bearing Corporate Identification No. (CIN): U31109DL2015PLC274891, and having its registered office at 54, Okhla Industrial Estate, Phase III, New Delhi 110020.

1.2 **"Act" or "the Act"** means the Companies Act, 2013 and shall include any statutory modifications, re-enactment or amendments thereof for the time being in force.

1.3 **"Appointed Date"** means 1st April, 2026 or any such date as may be approved by Approving Authority.

1.4 **"Approving Authority"** means NCLT or Regional Director or any other authority having jurisdiction and power to sanction the proposed Scheme;

1.5 The "**Board**" or "**Board of Directors**" means Board of Directors of Transferor Company or Transferee Company and includes any committee, as the context may require.

1.6 **"Effective Date"** means later of last of the dates on which the certified copies of the order sanctioning this Scheme, passed by the NCLT or such other competent authority, as may be applicable, are filed with the Registrar of Companies by the Transferor Company and the Transferee Company. All references in this Scheme to the date of "coming into effect of this Scheme" or "effectiveness of this Scheme" or "Scheme taking effect" shall mean the Effective Date.

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1.7 "**Regional Director**" means a person appointed as Regional Director by the Central Government for the purposes of the Act who has jurisdiction and power to sanction this Scheme.

1.8 "**Registrar of Companies**" means Registrar as defined under Section 2(75) of the Act having jurisdiction over the Transferor Company and Transferee Company;

1.9 **"NCLT"** means the jurisdictional National Company Law Tribunal;

1.10 **"PPAP"** or **"Transferee Company"** means PPAP Automotive Limited, a public company incorporated under the Companies Act, 1956 on 18 October, 1995 bearing Corporate Identification No. (CIN): L74899DL1995PLC073281 and having its registered office at 54, Okhla Industrial Estate, Phase III, New Delhi, 110020. The shares of the Transferee Company are listed on BSE and NSE.

1.11 **"Scheme"** or "**the Scheme**" or "**this Scheme**" means this Scheme of Amalgamation in its present form as submitted to the Approving Authority with such modification(s), if any made, as per Clause 17 of the Scheme.

1.12 All terms and words used in this Scheme and not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye laws, as the case may be, including any statutory modification or re-enactment thereof from time to time.

2 DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Central Government / NCLT or made as per Clause 17 of the Scheme, shall be effective from the Appointed Date but shall be operative from the Effective Date.

3 CAPITAL STRUCTURE

3.1 The share capital of Transferor Company as at 31 March 2026 as per the audited financial statements is set out below:

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Particulars	Amount (Rs.)
Authorised Capital	
1,50,00,000 Equity Shares of Rs.10/- each	15,00,00,000
Total	**15,00,00,000**
Issued, Subscribed and Paid-up	
1,37,99,235 Equity Shares of Rs.10/- each	13,79,92,350
Total	**13,79,92,350**

Subsequent to 31 March 2026 and till the date of approval by the Board of Directors to the said Scheme, there have been no additions / changes in capital of the Transferor Company.

3.2 The share capital of Transferee Company as at 31 March 2026 as per the audited financial statements is set out below:

Particulars	Amount (Rs.)
Authorised Capital	
2,00,00,000 Equity Shares of Rs.10/- each	20,00,00,000
Total	**20,00,00,000**
Issued, Subscribed and Paid-up	
1,41,15,070Equity Shares of Rs.10/- each	14,11,50,700
Total	14,11,50,700

The Board at its meeting held on 11th May 2026 has approved allotment of 37,917 equity shares of Rs. 10 each. Thus, the equity share capital of the company post allotment as on 30th June 2026 is as under:

Particulars	Amount (Rs.)
Authorised Capital	
2,00,00,000 Equity Shares of Rs.10/- each	20,00,00,000
Total	**20,00,00,000**
Issued, Subscribed and Paid-up	
1,41,52,987 Equity Shares of Rs.10/- each	14,15,29,870

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Total	14,15,29,870

PART II – AMALGAMATION OF ABL WITH PPAP

4 TRANSFER AND VESTING

4.1 With effect from the Appointed Date, the whole of the undertaking(s) under entire business of Transferor Company shall stand transferred and vested in the Transferee Company including, without any limitation:

(a) All the assets and properties (whether movable or immovable, tangible or intangible, real or personal, corporeal or incorporeal, present, future or contingent) of the Transferor Company, including but not limited to, plant and machinery, equipment, buildings and structures, offices, residential and other premises, sundry debtors, furniture, fixtures, office equipment, appliances, accessories, depots, deposits, all stocks, assets, investments of all kinds (including shares, scrips, stocks, bonds, debenture stocks, units), and interests in its subsidiaries, cash balances or deposits with banks, loans, advances, disbursements, contingent rights or benefits, book debts, receivables, actionable claims, earnest moneys, advances or deposits paid by the Transferor Company, financial assets, leases (including lease rights), hire purchase contracts and assets, lending contracts, rights and benefits under any agreement, benefit of any security arrangements or under any guarantees, reversions, powers, municipal permissions, tenancies in relation to the office and/or residential properties for the employees or other persons, guest houses, godowns, warehouses, licenses (including import / export licenses), fixed and other assets, trade and service names and marks, patents, copyrights, and other intellectual property rights of any nature whatsoever, know how, goodwill, rights to use and avail of telephones, telexes, facsimile, email, internet, leased line connections and installations, utilities, electricity and other services, reserves, provisions, funds, benefits of assets or properties or other interest held in trust, registrations, contracts, engagements, arrangements of all kind, privileges and all other rights including, title, interests, other benefits (including tax benefits), easements, privileges, liberties, mortgages, hypothecations,

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pledges or other security interests created in favour of the Transferor Company and advantages of whatsoever nature and whosesoever situated in India or abroad, belonging to or in the ownership, power or possession and in the control of or vested in or granted in favour of or enjoyed by the Transferor Company or in connection with or relating to the Transferor Company and all other interests of whatsoever nature belonging to or in the ownership, power, possession or the control of or vested in or granted in favour of or held for the benefit of or enjoyed by the Transferor Company, whether in India or abroad;

(b) All liabilities including, without being limited to, secured and unsecured debts (whether in Indian rupees or foreign currency), sundry creditors, liabilities (including contingent liabilities), duties and obligations of the Transferor Company, of every kind, nature and description whatsoever and howsoever arising, raised or incurred or utilized;

(c) All agreements, rights, contracts, entitlements, permits, licenses, approvals, authorizations, concessions, consents, quota rights, engagements, arrangements, authorities, allotments, security arrangements (to the extent provided herein), benefits of any guarantees, reversions, powers and all other approvals of every kind, nature and description whatsoever relating to the business activities and operations of the Transferor Company;

(d) All records, files, papers, computer programs, manuals, data, catalogues, sales material, lists of customers and suppliers, other customer information and all other records and documents relating to the business activities and operations of the Transferor Company;

(e) All permanent employees engaged by the Transferor Company as on the Effective Date;

(f) all quotas, rights, entitlements, export/import incentives and benefits including advance licenses, bids, tenders (at any stage as it may be), letters of intent, expressions of interest, development rights (whatever vested or potential and whether under agreements or otherwise), subsidies, tenancies in relation to

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office, benefit of any deposits privileges, all other rights, receivables, powers and facilities of every kind, nature and description whatsoever, rights to use and avail of telephones, telexes, facsimile connections and installations, utilities, electricity and other services, provisions and benefits of all agreements, contracts and arrangements, including technological licensing agreements, and all other interests in connection with or relating thereto;

(g) all brand names, trademarks, trade names, patents and domain names, the intellectual property; applications pending and authorizations by governmental authorities in any jurisdiction, filings, dossiers copyrights, industrial designs, trade secrets, know-how; data, technology, methodology, manufacturing procedures and techniques, test procedures, product registrations, applications and authorizations and other intellectual property and all other interests exclusively relating to the goods or services being dealt with by the Transferor Company;

(h) all intellectual property rights created, developed or invented by employees concentrated on the research, development or marketing of products (including process development or enhancement) in connection with the Transferor Company;

(i) all benefits and privileges under letters of permission and letters, of approvals in respect of Special Economic Zones and Export Oriented Units and the benefits related thereto, all tax credits, including CENVAT credits, refunds; reimbursements, claims, exemptions, benefits under service tax laws, value added tax, purchase tax, sales tax, Goods & Services Tax (GST) or any other duty or tax or cess or imposts under central or state law including sales tax deferrals, advance taxes, tax deducted at source, right to carry forward and set-off unabsorbed losses, if any and depreciation, deductions and benefits under the IT Act;

4.2 The transfer and vesting as aforesaid shall be subject to the existing charges / hypothecation / mortgages, if any, as may be subsisting and agreed to be created over or in respect of the said assets or any part thereof, provided however, any

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reference in any security documents or arrangements to which Transferor Company is party wherein the assets of Transferor Company have been or are offered or agreed to be offered as security for any financial assistance or obligations shall be construed as reference only to the assets pertaining to Transferor Company and vested in Transferee Company by virtue of this Scheme to the end and intent that the charges shall not extend or deemed to extend to any assets of Transferee Company.

Provided that the Scheme shall not operate to enlarge the security for the said liabilities of Transferor Company which shall vest in Transferee Company by virtue of the Scheme and Transferee Company shall not be obliged to create any further, or additional security thereof after the amalgamation has become effective or otherwise. The transfer / vesting of the assets of Transferor Company as aforesaid shall be subject to the existing charges / hypothecation / mortgages over or in respect of the assets or any part thereof of Transferor Company.

4.3 All the movable assets of Transferor Company or assets otherwise capable of transfer by manual delivery or by endorsement and delivery, including cash in hand, shall be physically handed over by manual delivery or by endorsement and delivery, to Transferee Company to the end and intent that the property therein passes to Transferee Company on such manual delivery or endorsement and delivery, without requiring any deed or instrument of conveyance for the same and shall become the property of Transferee Company accordingly. No stamp duty shall be payable on the transfer of such movable properties forming part of the undertaking of the Transferor Company and being vested in the Transferee Company.

4.4 In respect of movable assets, other than those specified in Clause 4.3 above including sundry debtors, receivables, bills, credits, loans and advances, if any, whether recoverable in cash or in kind or for value to be received, bank balances, investments, earnest money and deposits with any government / quasi government, local or other authority or body or with any company or other person, the same shall, without further act, instrument or deed, be transferred and/or deemed to be transferred to and vested in Transferee Company pursuant to the provisions of Section 230 of the Act and Transferor Company shall give notice in such form as

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they deems fit to such persons, that pursuant to the Order(s) of the competent authorities/ NCLT, the said assets would be paid or made good to or held on account of Transferee Company, and the rights of Transferor Company will vest with Transferee Company upon this Scheme becoming effective.

4.5 The liabilities of Transferor Company shall also, without any further act, instrument or deed be and transferred to and vested in and assumed by and/or deemed to be transferred to and vested in and assumed by Transferee Company pursuant to the provisions of Section 230 of the Act, so as to become the liabilities of Transferee Company and further that it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such liabilities have arisen, in order to give effect to the provisions of this clause.

4.6 Transferee Company may at any time after coming into effect of the Scheme in accordance with the provisions of the Scheme, if so required, under any law or otherwise, execute deeds of confirmation, in favour of the creditors of Transferor Company, if any, or in favour of any other party to any contract or arrangement to which Transferor Company is party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. Transferee Company shall under the provisions of the Scheme be deemed to be authorised to execute any such writings on behalf of Transferor Company and to implement or carry out all such formalities or compliance referred to above on the part of Transferor Company to be carried out or performed.

4.7 With effect from the Appointed Date, all statutory registrations, licenses, (including import / export licenses), permits, approvals or consents to carry on the operations and business of Transferor Company shall stand vested in or transferred to Transferee Company without any further act or deed and shall be appropriately mutated/ recorded by the statutory authorities concerned in favour of Transferee Company. The benefit of all statutory and regulatory registrations, permissions, licenses, approvals and consents shall vest in and become available to Transferee Company pursuant to this Scheme. In so far as the various incentives, subsidies, if any, special status and other benefits or privileges enjoyed, granted by any Government body, local authority or by any other person, or availed of by Transferor

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Company, are concerned, the same shall vest with and be available to Transferee Company on the same terms and conditions.

4.8 Upon the scheme coming into effect, all taxes / cess / duties or any other deduction or like payment, direct and / or indirect, payment by or on behalf of Transferor Company including all or any refund and claims, including refunds or claim pending with the revenue authorities and including the right to carry forward accumulated losses, if any, shall for the purposes be treated as the tax / cess / duties/ liabilities or refunds, claims, accumulated losses and credits of Transferee Company, notwithstanding that the certificates/ challans or other documents for payment of such taxes/duties are in the name of the Transferor Company. Further, upon the Scheme coming into effect, all tax compliances under the applicable tax laws by the Transferor Companies on or after Appointed Date shall be deemed to be made by the Transferee Company.

4.9 Upon the Scheme coming into effect on the Effective Date, and with effect from the Appointed Date, all existing and future incentives, unavailed credits or exemptions, minimum alternate tax credit, credit for advance taxes, tax deducted at source, credit of foreign taxes paid/withheld, benefit of carried forward losses, unabsorbed depreciation and other statutory benefit, including in respect of income tax, excise (including MODVAT / CENVAT), customs, VAT, sales tax, service tax, GST etc. to which the Transferor Company are entitled to, shall be available to and vest in Transferee Company.

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PART III - SHARE ENTITLEMENT RATIO AND ACCOUNTING TREATMENT

5 Share entitlement Ratio

5.1 Transferee Company holds beneficial interest in entire equity share capital of Transferor Company.

5.2 All shares held by the Transferee Company in the share capital of the Transferor Company as on the Effective Date shall stand cancelled, without any further act or deed, upon this Scheme becoming effective.

5.3 In lieu thereof, no allotment of any new shares or any payment shall be made to any person whatsoever as a result of which there is no requirement to determine the share entitlement ratio.

6 Accounting treatment

A. In the books of Transferee Company

Upon the Scheme becoming effective, the Transferee Company shall account for the amalgamation of the Transferor Company in its books of accounts in accordance with 'Pooling of Interest Method' of accounting as laid down in Appendix C of IND-AS 103 notified under section 133 of the Companies Act, 2013 such that:

6.1 All the assets and liabilities recorded in the books of the Transferor Company shall stand transferred to and vested in the Transferee Company pursuant to the Scheme and shall be recorded by the Transferee Company at their respective carrying values as appearing in the books of the Transferor Company, as on the Appointed Date.

6.2 The identity of the reserves of the Transferor Company, if any, shall be preserved and they shall appear in the financial statements of the Transferee Company in the same form and manner, in which they appeared in the financial statements of the Transferor Company, prior to this Scheme becoming effective. All the reserves of the Transferor Company under different heads shall become the corresponding reserves of the Transferee Company.

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6.3 To the extent that there are inter-corporate loans, inter-company payables, receivables (including loans, advances or debentures, deposits, balances etc.) and other obligations or balances between the Transferor Company and the Transferee Company, the obligations in respect thereof shall come to an end and corresponding effect shall be given in the books of account and records of the Transferee Company for the reduction of any assets or liabilities, as the case may be.

6.4 Upon the coming into effect of this Scheme, inter Company investment in the books of Transferor Company and the Transferee Company, representing shares of Transferor Company and/ or the Transferee Company will stand cancelled and no shares or consideration shall be issued by the Transferee Company in respect of such cancelled shares.

6.5 Upon this Scheme becoming effective and with effect from the Appointed Date, the difference, if any, between the value of total assets and total liabilities as recorded in the books of the Transferee Company, pursuant to paragraph 6.1 above, and after making adjustments as stated in paragraphs 6.2, 6.3 and 6.4 shall be recorded as and credited to or debited to the Capital Reserve, as the case may be, available in the financial statements of the Transferee Company.

6.6 The financial information in the financial statements of the Transferee Company in respect of prior periods should be restated as if the business combination had occurred from the beginning of the preceding period in the financial statements, irrespective of the actual date of the combination. However, if business combination had occurred after that date, the prior period information shall be restated only from that date."

6.7 In case of any differences in the accounting policies between the Transferor Company and the Transferee Company, the accounting policies followed by the Transferee Company will prevail and the impact of the same till the Appointed Date will be quantified and the same shall be appropriately adjusted and reported in accordance with applicable accounting rules and principles, so as to ensure

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that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policies.

6.8 Notwithstanding the above, the Board of Directors of the Transferee Company, in consultation with its Statutory Auditors, is authorised to account for any of these balances in any manner whatsoever, as may be deemed fit, in accordance with the prescribed Ind AS specified as per section 133 of the Companies Act, 2013 read with the relevant rules issued thereunder.

B. In the books of Transferor Company

The Transferor Company shall stand dissolved without being wound up upon this Scheme becoming effective as mentioned in Clause 14 of this Scheme and all the assets and liabilities as well as reserves shall be transferred to the Transferee Company on a going concern basis.

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PART IV– GENERAL TERMS AND CONDITIONS

7 CONSOLIDATION OF AUTHORIZED CAPITAL AND ALTERATION OF MAIN OBJECTS OF MEMORANDUM AND ARTICLES OF ASSOCIATION

7.1 Upon the Scheme becoming effective, the authorized share capital of Transferee Company shall stand increased without any further act, instrument or deed on the part of Transferee Company (including payment of stamp duty and fees payable to the concerned Registrar of Companies) by the amount of authorized share capital of Transferor Company as on Effective Date and the Memorandum and Articles of Association of Transferee Company (relevant clause relating to the authorized share capital) shall, without any further act, instrument or deed, be and stand altered, modified and amended and the stamp duties and fees paid on the authorized capital of Transferor Company shall be utilized and applied to the increased authorized share capital of Transferee Company and differential fees, stamp duty (if any) on the consolidated authorised capital shall be paid by the Transferee Company.

7.2 Upon the Scheme becoming effective, the main objects of the Transferor Company, as stated under Clause IIIA of its Memorandum of Association as on the Effective Date, shall stand inserted as the additional main objects of the Transferee Company stated under Clause III(a) of its Memorandum of Association after Para 4, without any further act, instrument or deed so as to enable the Transferee Company to undertake the business activities carried on by the Transferor Company without interruption, in terms of Section 13 and 14 of the Act.

7.3 For the purposes of amendment in the Memorandum of Association of the Transferee Company as provided under this Clause, the consent / approvals given by the shareholders of the Transferee Company to this Scheme pursuant to the provisions of Section 230 to 232 of the Act or any other applicable provisions of the Act shall be deemed to be sufficient without requiring any separate resolution/ approval of the shareholders of the Transferee Company in terms of the provisions of Section 13 and 14 of the Act.

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8 TREATMENT OF TAXES

8.1 Any tax liabilities under the Income-tax Act, 1961, Customs Act, 1962, Central Excise Act, 1944, Service Tax, State Sales Tax laws, Central Sales Tax Act, 1956, Goods and Services Tax Act or other applicable laws/ regulations dealing with taxes/ duties/ levies (hereinafter in this Clause referred to as "**Tax Laws**") allocable or related to the business of Transferor Company to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be transferred to Transferee Company. Any surplus in the provision for taxation/ duties/ levies account including advance tax and withholding tax as on the date immediately preceding the Appointed Date will also be transferred to the account of the Transferee Company. Any refund under the Tax Laws due to Transferor Company consequent to the assessments made on Transferor Company and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by Transferee Company.

8.2 All taxes (including income tax, sales tax, excise duty, customs duty, service tax, VAT, GST etc.) paid or payable by Transferor Company in respect of the operations and/or the profits of the business before the Appointed Date, shall be on account of Transferor Company and, insofar as it relates to the tax payment (including without limitation, sales tax, excise duty, custom duty, income tax, Service tax, VAT, GST etc.), whether by way of deduction at source, advance tax or otherwise howsoever, by Transferor Company in respect of the profits or activities or operation of the business after the Appointed Date, the same shall be deemed to be the corresponding item paid by Transferee Company, and, shall, in all proceedings, be dealt with accordingly.

8.3 Upon this Scheme coming into effect on the Effective Date, the Transferee Company is expressly permitted to, amongst others, revise and/ or file its income tax returns and other statutory returns, including tax deducted / collected at source returns, wealth tax returns, service tax returns, excise tax returns, sales tax / VAT/ GST returns, professional tax returns as may be applicable, if required, even if the prescribed time limits for filing or revising such returns have lapsed without incurring

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any liability on account of interest, penalty or any other sum and has expressly reserved the right to make such provision in its returns and to claim refunds or tax credits, set-offs etc., if any. All the deductions otherwise admissible to the Transferor Companies including claim for sum prescribed under Section 43B of the IT Act, 1961/ Section 37 of the IT Act, 2025 on payment basis, claim for deduction of provisions written back by Transferee Company previously disallowed in the hands of Transferor Company under the IT Act, claim on deduction of appropriate taxes or on payment of tax deducted at source will be eligible for deduction to Transferee Company.

9 CONDUCT OF BUSINESS/ ACTIVITIES OF TRANSFEROR COMPANY TILL EFFECTIVE DATE

During the period between the Appointed Date and the Effective Date:

9.1 Transferor Company shall be deemed to have been carrying on and shall carry on its business/ activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of all its properties and assets for and on account of and in trust of the Transferee Company. Transferor Company hereby undertakes to hold its said assets with utmost prudence until the Effective Date.

9.2 Transferor Company shall carry on its business / activities with reasonable diligence, business prudence and in the same manner as it had been doing in the ordinary course of business.

9.3 Transferor Company shall not, except in the ordinary course of business or without prior written consent of Transferee Company sell, transfer, alienate, charge, mortgage, encumber or otherwise deal with or dispose any of its properties, business/ assets or part thereof.

9.4 All the profits or income accruing or arising to Transferor Company or expenditure or losses arising or incurred or suffered by Transferor Company pertaining to the business and undertaking of Transferor Company shall for all purposes be treated

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and be deemed to be and accrue as the income or profits or losses or expenditure as the case may be of Transferee Company.

9.5 Transferor Company shall not vary the terms and conditions of employment of any of the employees except in the ordinary course of business or without the prior consent of Transferee Company or pursuant to any pre-existing obligation undertaken by Transferor Company, as the case may be, prior to the Appointed Date.

9.6 Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Central/State Government, and all other agencies, departments and authorities concerned as are necessary under any law or rules, for such consents, approvals and sanctions, which Transferee Company, may require pursuant to this Scheme.

9.7 Transferee Company and Transferor Company shall charge the service tax, sales tax, GST and other applicable taxes at the prescribed rates in force for inter-company transactions entered during the period between the Appointed Date of the Scheme and the Effective Date. Upon the Scheme becoming effective, there shall not be any inter-company transactions between Transferee Company with Transferor Company subsequent to the Appointed Date and hence, inter-company transactions between Transferor Company with Transferee Company shall be considered not to be the transactions between two different entities. Accordingly, Transferee Company is expressly permitted to revise its financial statements and returns along with prescribed forms, filings and annexures under the Income Tax Act, 1961/2025 and other tax laws. Transferee Company is also expressly permitted to claim refunds and/or credits for taxes paid (specifically including refund of taxes paid on inter-company transactions with Transferor Company during the period between the Appointed Date of the Scheme and the Effective Date) and to claim all other applicable tax benefits under the IT Act and any other tax law and for matters incidental thereto, if required to give effect to the provisions of this Scheme.

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10 STAFF, WORKMEN AND EMPLOYEES

10.1 On the Scheme becoming effective, all the staff, workmen and employees of Transferor Company shall be deemed to have become the employees of Transferee Company with effect from the Appointed Date, without any break or interruption in their services on the basis of continuity of service, on not less favourable terms and conditions on which they are engaged as on the Effective Date. Transferee Company further agrees that for the purpose of payment of any retirement benefit / compensation, such immediate uninterrupted past services with Transferor Company shall also be taken into account. Transferee Company undertakes to continue to abide by the terms of agreement / settlement entered into by Transferor Company, with employee or associations of Transferor Company.

10.2 The accounts / funds of the staff, workmen and employees whose services are transferred under Clause 10.1 above, relating to superannuation, provident fund and gratuity fund shall be identified, determined and transferred to the respective trusts / funds of Transferee Company and such staff, workmen and employees shall be deemed to have become members of such trusts / funds of Transferee Company. It is clarified that the services of the staff, workmen and employees of Transferor Company will be treated as having been continuous for the purpose of the said trusts or funds.

11 LEGAL PROCEEDINGS

11.1 If any suit, appeal or other proceeding of whatever nature by or against Transferor Company is pending, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of or by anything contained in this Scheme, but the said suit, appeal or other legal proceedings may be continued, prosecuted and enforced by or against Transferee Company, as the case may be, in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against Transferor Company as if this Scheme had not been made.

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11.2 In case of any litigation, suits, recovery proceedings which are to be initiated or may be initiated against Transferor Company, Transferee Company shall be made party thereto, and any payment and expenses made thereto shall be the liability of Transferee Company.

12 CONTRACTS, DEEDS, ETC.

12.1 Subject to the other provisions of this Scheme, all contracts, deeds, bonds, insurance, letters of intent, undertakings, arrangements, policies, agreements and other instruments, if any, of whatsoever nature pertaining to Transferor Company, to which Transferor Company is a party and subsisting or having effect on the Effective Date, shall be in full force and effect against or in favour of Transferee Company, as the case may be, and may be enforced by or against Transferee Company as fully and effectually as if, instead of Transferor Company, Transferee Company had been a party thereto.

12.2 Transferee Company shall enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite arrangements, confirmations or novations, to which Transferor Company will, if necessary, also be party in order to give formal effect to the provisions of this Scheme, if so required or becomes necessary. Transferee Company shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of Transferor Company and to implement or carry out all formalities required on the part of Transferor Company to give effect to the provisions of this Scheme.

12.3 It is clarified that upon the Scheme becoming effective, any inter-company contracts shall stand cancelled and cease to operate.

13 SAVING OF CONCLUDED TRANSACTIONS

The transfer of properties and liabilities under Clause 4 above and the continuance of proceedings by or against Transferor Company under Clause 11 above shall not affect any transaction or proceedings already concluded by Transferor Company on and after the Appointed Date till the Effective Date, to the end and intent that Transferee Company accepts and adopts all acts, deeds and things done and

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executed by Transferor Company in respect thereto as done and executed on behalf of Transferee Company.

14 DISSOLUTION OF TRANSFEROR COMPANY

On the Scheme becoming effective, Transferor Company shall stand dissolved without being wound-up.

15 APPLICATION TO APPROVING AUTHORITY / NATIONAL COMPANY LAW TRIBUNAL

Transferor Company and Transferee Company shall with all reasonable dispatch make all necessary applications under Section 230 to 234 of the Act including any other applicable provisions of the Act to the Registrar Of Companies/ Official Liquidators/ NCLT/ other competent authority for seeking approval of the Scheme.

16 MODIFICATION OR AMENDMENTS TO THE SCHEME

Subject to the approval by the jurisdictional Registrar of Companies/ Official Liquidators/ NCLT, Transferor Company and Transferee Company by their respective Boards of Directors may assent to/make and/or consent to any modifications/amendments to the Scheme or to any conditions or limitations that the Registrar of Companies/ Official Liquidators/ NCLT under law may deem fit to direct or impose, or which may otherwise be considered necessary, desirable or appropriate as a result of subsequent events or otherwise by them (i.e. the Board). Transferor Company and Transferee Company by their respective Board are authorised to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whatsoever for carrying the Scheme into effect, whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith.

Further, it is clarified that the initial consent of the shareholders and creditors (both secured and unsecured) of both the companies i.e. Transferor Company and Transferee Company, to this Scheme shall in itself be deemed to be sufficient to

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authorize the operation of the abovementioned clauses of this Scheme and any subsequent alteration would not require a fresh note of consent from such shareholders and creditors.

17 CONDITIONALITY OF THE SCHEME

This Scheme is and shall be conditional upon and subject to:

17.1 The Scheme being consented or approved by the requisite majorities of such respective members and secured and unsecured creditors of Transferor Company and Transferee Company as mandated under the Act or as may be directed by the NCLT (if applicable);

17.2 The sanction of the jurisdictional Approving Authority / NCLT under the Sections 230 to 234 of the said Act;

17.3 Appropriate sanctions obtained from other regulatory authorities, if necessary;

17.4 Certified or authenticated copy of the Orders of the jurisdictional authorities/ Central Government/NCLT sanctioning the Scheme being filed with the concerned Registrars of Companies by Transferee Company and Transferor Company.

18 EFFECT OF NON-RECEIPT OF APPROVALS

In the event of any of the said sanctions and approvals referred to in the preceding Clause not being obtained and/ or the Scheme not being sanctioned by the jurisdictional authorities/ Central Government/ NCLT, this Scheme shall stand revoked, cancelled and be of no effect and null and void, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and/ or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

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19 SEVERABILITY

If any part of this Scheme is found to be unenforceable for any reason whatsoever, the same shall not, subject to the mutual agreement of the Transferor Company and the Transferee Company, affect the validity or implementation of the other parts and/or provisions of this Scheme.

20 COSTS, CHARGES & EXPENSES CONNECTED WITH THE SCHEME

All costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed) of Transferor Company and Transferee Company arising out of or incurred in connection with and implementing this Scheme and matters incidental thereto shall be borne and incurred by Transferee Company.

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